

GINSBURG, J., dissenting

Restatement (Second) of Conflict of Laws § 145, Comment *e*, p. 420 (1969).⁴

IV

Even accepting, *arguendo*, that the setting in this case could be characterized as “new,” there is still no good reason why Hernández’s parents should face a closed courtroom door. As in *Bivens*, plaintiffs lack recourse to alternative remedies. And not one of the “special factors” the Court identifies weigh any differently based on where a bullet happens to land.

A

It was “of central importance” to the Court’s disposition in *Abbasi* that the case was “[un]like *Bivens* . . . in which ‘it [was] damages or nothing.’” 582 U.S., at 144 (quoting *Bivens*, 403 U.S., at 410 (Harlan, J., concurring in judgment)). Here, as Judge Prado, dissenting below, observed, “[i]t is uncontested that plaintiffs find no alternative relief in Mexican law, state law, the Federal Tort Claims Act (‘FTCA’), the Alien Tort Statute (‘ATS’), or federal criminal law.” 885 F.3d, at 827. While the absence of alternative remedies, standing alone, does not warrant a *Bivens* action, cf. 582 U.S., at 137, it remains a significant consideration under *Abbasi*’s guidelines.

B

The special factors featured by the Court relate, in the main, to foreign policy and national security. But, as suggested earlier, see *supra*, at 124, no policies or policymakers

⁴The Court of Appeals typed the setting of this case “new” because it was unsure whether the asserted constitutional rights extended “to foreign citizens on foreign soil.” 885 F.3d 811, 817 (CA5 2018). But that question is appropriately addressed in deciding this case on the merits. The Court of Appeals’ uncertainty does not mean a claim arises in a “new” context for *Bivens* purposes, for “[t]here will always be at least some uncertainty as to whether[, once factual allegations are tested at trial,] a plaintiff is ultimately going to prevail on his constitutional claims.” Brief for Petitioners 24.